

STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

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June 30, 2003

Mr. John Lohr
CEMEX Inc.
P.O. Box 529
Lyons, CO 80540

RE: CEMEX, Inc.; Lyons Quarry, Permit No. M-1977-208
Technical Revision 02; Adequacy Letter

Dear Mr. Lohr,

The Division received the Technical Revision (TR-02) submitted by CEMEX, Inc. (CEMEX) for the Lyons Quarry, Permit No. M-1977-208. The revision request on-site disposal of concrete rubble at the close and demolition of the concrete plant. The revision was submitted in order to clarify reclamation of the Plant Area associated with the \$7.6 million increase in the reclamation cost estimate. The Division recognizes that this plan will be exercised in the event the concrete rubble is not recycled and hauled off site as initially suggested by CEMEX.

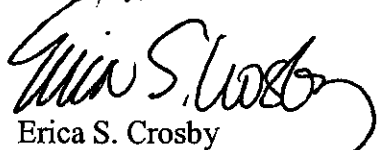
The Division has the following questions that need to be addressed by the operator before TR-02 can be approved.

1. The approved postmining land use for the plant area is irrigated pasture (see attached map submitted to the Division by Martin Marietta on September 14, 1977). The Division believes that the 10-acre area designated as a concrete disposal site should not be irrigated as noted in the reclamation plan. Direct water contact should be kept to a minimum on the disposal site. The Division would be willing to accept a change in land use for this 10-acre disposal site as dryland pasture, currently approved at other areas of the mine site. The Division does not consider the *change to dryland pasture for this 10-acre parcel as a significant change to the reclamation plan*, and therefore can be revised under this Technical Revision. Please find a copy of the reclamation plan for the Lyons Quarry addressing the seed mixture to be used for dryland pasture.
2. Please further explain the volume and source of the cover material that is to be used to cover the clay liner (or the geosynthetic liner) and the concrete rubble. If clay is to be used for the liner, please also describe the source of that material.
3. Please explain if topsoil is to be salvaged and replaced over the reclaimed concrete disposal pile in accordance with Rule 6.3.3 (b). The original application submitted by Martin Marietta on September 14, 1977 states that 4" to 6" of topsoil will be replaced in layers and fertilizer applied when seeding is done. A copy of that portion of the application is included.

4. The proposed disposal site location is adjacent to the Swede Ditch, immediately to the North. The maps currently on file at the Division do not clearly depict the ditch in relation to the existing hogback. This ditch may be a source of water that could infiltrate the pile, and ultimately produce a spring or seep at the toe of the disposal site. The clay liner may act as a barrier causing water to discharge at some point along the toe of the pile. Please explain how the location and construction of the proposed concrete disposal site in proximity to the Swede Ditch could result in a point source of water at the toe of the pile.
5. A seed mix schedule is noted on the "On-Site Disposal Cell Map" submitted with TR-02. Please explain if this seed mixture is to replace either the irrigated seed mixture or the dryland seed mixture noted in the 1977 application (copy included).

Please be advised that Division's decision due date is set for July 7, 2003. If you feel more time is needed to complete your reply, the Division can grant an extension to the decision date. This will be done upon receipt of a written waiver of your right to a decision by July 7, 2003 and request for additional time. This must be received no later than the deadline date. If you have any questions, please contact me at (303) 866-4943.

Sincerely,



Erica S. Crosby
Environmental Protection Specialist

Enclosure(s)

cc: Carl Mount, DMG (*via email*)
Paul Banks; Banks and Gesso, LLC *w/enclosure(s)*

6.4 Topsoiling

- a) Topsoil is stripped off and stockpiled for later use. Natural vegetation has come up and covered the piles.
- b) There are virtually no trees to speak of in the mining area.
- c) Stockpiles of topsoil are located on affected land.
- d) Topsoil stockpiles are only rehandled once. They are not compacted except to the extent of when they are being built by heavy machinery.
- e) The slopes are graded to insure stability and prevent erosion.
- f) Topsoil used is the only material available.
- g) Topsoil is spread in 4" to 6" layers and fertilizer applied when seeding is done.
- h) There is no vegetative growth to be removed; consequently, no piles are made.

6.5 Revegetation

- a) Revegetation is accomplished by a grass mixture designed by Colorado State University.
- b) Forest planting is not part of the reclamation plan.
- c) Some of the land will be restored to range, and all slopes are 2 horizontal to 1 vertical or less.
- d) The seed mixture being used in the reclamation plan has been very successful to date and has a high probability of success.
- e) The reclamation sites are prepared and graded by heavy equipment and then seeding and fertilizing are accomplished by a drill and farm tractor.
- f) Noxious weeds are sprayed annually on all parts of the property.
- g) There are plenty of access roads to all locations of the property.

RECLAMATION PLAN

The reclamation plan for the Martin Marietta Lyons quarry is straightforward and simple. The overall idea is to put the land back to as near the original land use as possible. Since the surrounding land is agricultural, we will make dryland pasture where there was dryland pasture, irrigated pasture where there was irrigated pasture and so on. In some areas, the land will be more useful or more productive from a farming or ranching point of view. Because we are removing material from the ground that will never be replaced, we will leave some lakes which will enhance the water storage for this area.

The total acres to be mined is approximately 470 acres with approximately 160 acres used for waste disposal area. Conceivably, 400 acres could be under mining, stripping, or reclamation at the same time. The reclamation will take place in conjunction with the mining plan and according to the timetable found in Exhibit "D", and the reclamation map found at the end of this section.

The best way to describe the reclamation is by area; what the area was like before mining and what the area will be like after reclamation.

The quarry is divided in two by the Boulder Feeder Canal and the Swede Ditch. Part of the overall plan is to move the Boulder Canal and the Swede Ditch into the mined out area of Pit B. Once this is accomplished, these two ditches will serve as reference elevations. Everything to the west of these ditches will slope to the ditch and everything to the east will slope away from the ditch.

Martin Marietta Lyons quarry utilizes two types of seed mixtures in reclaiming. The following is a breakdown of the two varieties:

Dryland Mix

- 39% winter rye
- 13% ranger alfalfa
- 9% smooth broom
- 8% intermediate wheat grass
- 7% slender wheat grass
- 8% Nordan crested wheat grass
- 6% Russian wild rye
- 10% Jose tall wheat grass

Irrigated Mix

- 31% orchard grass
- 32% intermediate wheat grass
- 37% smooth broom grass

These two varieties will be referred to throughout the reclamation plan as "dryland pasture mix" and "irrigated pasture mix", and will be planted in such quantities in order to provide necessary cover. This is from 25 pounds to 75 pounds of seed per acre.